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Supreme Court, U.S.
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No. 99-254

IN THE

Supreme Court of the United States

ELWOOD STROUT, DEBORAH STROUT, JOHN EULITT, BELINDA EULITT, RICHARD ROY, AND PATRICIA ROY,
Petitioners,

v.

J. DUKE ALBANESE, in his official capacity as Commissioner of the State of Maine Department of Education,
Respondent.

On Petition for Writ of Certiorari to the United States Court of Appeals for the First Circuit

REPLY TO BRIEF IN OPPOSITION

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REPLY TO BRIEF IN OPPOSITION

The issue in this litigation is whether the State of Maine can discriminatorily *exclude* from an educational assistance program, which program encompasses *private* schools, those students who attend private *religious* schools. The First Circuit held that while such governmental discrimination against religion would otherwise be unconstitutional, Pet. App. at 16a n.12, the Establishment Clause nevertheless *requires* such discrimination, *id.* at 15a, 16a, 19a.

Petitioners do *not* contend in this case that a State is required to fund private schools equally with public schools. There is no issue before this Court of the propriety of discrimination between aid to *public* schools versus private religious (or nonreligious) schools. Hence, the summary affirmances which Respondent cites on that distinct question, Opp. at 8, are irrelevant. Rather, in this case, the state has chosen to provide financial assistance to parents for their children's attendance at *private* schools but has categorically excluded the choice of *private religious* schools. This case, therefore, presents a situation of pure, *de jure* discrimination against religion.

Anti-religious discrimination has a long and odious history in this country, culminating in the "know-nothing" movement of the 19th and early 20th century.[1] In fact, at least one noted historian has said that it has been the most pervasive form of

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[1] Gaffney, Edward McGlynn, Jr., "*Hostility to Religion, American Style*", 42 DePaul L. Rev. 263, 1992; Gedicks, Frederick Mark, "*Public Life and Hostility to Religion*", 78 U. Va. L. Rev. 671,1992; Vitteritti, *Joseph P., "Blaine's Wake: School Choice, The First Amendment, and State Constitutional Law*,(1998) 21 Harv. J.L. & Pub. Pol'y 657.

bigotry in American history.[2] Maine's discrimination against religion is nothing more than official state bigotry dressed up in Establishment Clause clothing. The fair and equal treatment of religion in our society is long *overdue*: religion should receive the same treatment as other points of view, not better, not worse.

It is already settled law that the Establishment Clause *permits* neutral assistance plans in which private choice directs the flow of government aid. This is so even if the assistance is turned over to a religious school for the very purpose of religious training, *see Witters v. Washington Dep't of Serv's. for the Blind*, 474 U.S. 481 (1986) (aid used for religious seminary training), serves as a vehicle for the implementation of a religious education, *see Zobrest v. Catalina Foothills School Dist.*, 509 U.S. 1 (1993) (interpreter for deaf student), or takes place on the premises of a religious school, *see Agostini v. Felton*, 521 U.S. 203 (1997). These precedents turn on the crucial difference between government-directed schooling, on the one hand, and private parental or student choice of schooling, on the other. The Establishment Clause, which limits government action, poses no bar to the independent choice of private citizens to obtain, for themselves or their children, a religious education. Indeed, such a private choice enjoys constitutional protection. *Pierce v. Society of Sisters*, 268 U.S. 510 (1925); *Wisconsin v. Yoder*, 406 U.S. 205 (1972).

It is also settled law that the U.S. Constitution forbids governmental discrimination against private religious choices

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[2] Arthur Schlesinger said to Monsignor John Tracy Ellis: "I regard the prejudice against your church as the deepest bias in the history of the American people." John Tracy Ellis, *American Catholicism*, 61-69 (2d ed. 1969).

and, in particular, against private religious expression. This principle flows from the federal guarantees of free speech, *e.g., Widmar v. Vincent*, 454 U.S. 263 (1981); *Lamb's Chapel v. Center Moriches Union Free School Dist.*, 508 U.S. 384 (1993); *Rosenberger v. Rectors of Univ. of Va.*, 515 U.S. 819 (1995); free exercise of religion,[3] *e.g., Church of the Lukumi Babalu Aye v. City of Hialeah*, 508 U.S. 520 (1993); no establishment of religion, *see Lemon v. Kurtzman*, 403 U.S. 602, 612 (1971) (Establishment Clause forbids government action which has primary effect of inhibiting religion); *Board of Educ. v. Mergens*, 496 U.S. 226, 248 (1990) (anti-religious discrimination creates Establishment Clause problems); and equal protection, *see Clark v. Jeter*, 486 U.S. 456, 461 (1988) (classifications affecting fundamental rights trigger strict scrutiny).

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[3] Respondent would preclude this Court's consideration of Petitioner's Free Exercise Clause claim on the grounds that the Clause only protects a "*central* religious belief or practice," Opp. at 7 (emphasis added). But this Court has unanimously *rejected* any "centrality" test for Free Exercise claims. *Employment Division v. Smith*, 494 U.S. 872, 886-87 (1990) (majority opinion); *id.* at 906-07 (O'Connor, J., concurring in the judgment); *id.* at 919 (Blackmun, J., joined by Brennan and Marshall, JJ., dissenting). The First Circuit, therefore, erred by invoking this standard and setting itself up as a judge of Roman Catholic teaching on the "centrality" of parochial education, Pet. App. at 18a. It is simply not appropriate for courts to judge the relative "centrality" of religious beliefs. Furthermore, the "substantial burden" test, which Respondent invokes, Opp. at 7, only pertains to challenges to facially neutral restrictions. *See Hartmann v. Stone*, 68 F.3d 973, 979 & n.3 (6th Cir. 1995). Explicit discrimination against religion -- e.g., an express ban on wearing a cross or a pendant with Hebrew lettering, but not on other jewelry -- triggers the highest level of scrutiny regardless of how "substantial" the burden might be or how "central" the practice. *See Church of the Lukumi Babalu Aye v. City of Hialeah*, 508 U.S. 520, 532-33 (1993).

The present case rests at the convergence of these two lines of precedent. Once government extends a *benefit to private entities*, the Constitution does not require, and indeed forbids, the discriminatory denial of that benefit to those who exercise their religious freedom.

In conflict with the First Circuit's decision below, numerous lower courts have held that the Establishment Clause does *not* affirmatively *require* the discriminatory denial of a benefit when used for religious purposes. *See* Pet. § II (citing decisions of supreme courts of Arizona, Ohio, and Wisconsin). Other lower courts, also in conflict with the decision below, have held that the U.S. Constitution affirmatively *prohibits* such discrimination. *E.g., Peter v. Wedl*, 155 F.3d 992, 994-98 (8th Cir. 1998) (denial of paraprofessional to assist disabled student attending private *religious* school, but not other private *nonreligious* schools, was unconstitutional discrimination against religion); *Hartmann v. Stone*, 68 F.3d 973 (6th Cir. 1995) (discriminatory exclusion of private homes from Army's privately-run child care program, on basis of caretaker's religious practices like prayer before meals, was unconstitutional).

This Court should grant review to resolve this conflict and to settle the doctrinal confusion created by the First Circuit's ruling (as well as by the parallel ruling of the Maine Supreme Court, which is the subject of a separate petition for certiorari, No. 99-163).

Respondent insistently portrays the issue as one of "unrestricted, direct subsidies to a pervasively sectarian school for a religious education." Opp. at i; *see id.* at 1, 3, 5, 6, 8-15. But as demonstrated above, this completely mischaracterizes the case. The state has chosen to subsidize the parents' choice of a private school in those districts where there is no public

school. Given that subsidy to parents, the question is whether the state can discriminatorily outlaw parental use of that subsidy at an otherwise eligible private school for the sole reason that the school the parents have chosen is religious.

The First Circuit rested its decision entirely upon the proposition that allowing parents to use the Maine tuition assistance program to attend private *religious* schools would constitute "direct subsidies" to a "sectarian" school. Pet. App. 9a; *see id.* at 5a ("direct payment of tuition"), 10a ("direct . . . aid"), 11a ("broad sponsorship of religious schools"), 14a ("insurmountable impediment to the direct payments or subsidies"). One can interpret this holding in two possible ways, either of which militates in favor of review in this Court.

First, the court below may have believed that it was constitutionally decisive that the grants went to pay for *tuition* and not just for some more specific program like aid for disabled students (as in *Zobrest*) or bus transportation (as in *Everson v. Board of Education*, 330 U.S. 1 (1947)). But this holding undeniably puts the First Circuit in square conflict with the lower court cases upholding tuition voucher and tuition tax credit programs. *See* Pet. § II.

Second, the court below may have believed that it was constitutionally decisive that the *payee* on the tuition grant checks would be the school and not the parents, i.e., that this rendered the aid literally "direct." But this notion would elevate form over substance, and to an absurd degree. It is the *parents* who choose a religious education for their children, not the state. It is thus the *parents* who direct the flow of funds, not the state. Whether the check is made out to the parents and then endorsed over to the school, or made out to the school in the first instance at the direction of the parents, is an irrelevant technicality. To read into the Establishment Clause a "bright

line" based on such a bureaucratic detail would be to undertake precisely the stilted formalism this Court has repudiated, *see Agostini v. Felton*, 521 U.S. 203 (1997).[4]

CONCLUSION

This Court should grant review.

Respectfully submitted,

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[4] Such a rule would also create great constitutional mischief. For example, states could use this rule to nullify the equal access doctrine. By charging a prohibitive fee for the use of its designated fora (such as meeting halls), but then providing the precise fee amount to would-be users in the form of a grant, payable to the user ("direct aid"), the state would concoct a handy device for claiming that it was *required* discriminatorily to exclude religious speakers from the forum.

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